SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 1928 of 2022 (YEAR: 2014)

CORAM: K.S. RADHAKRISHNAN, A.K. SIKRI

Bharat Sanchar Nigam Ltd.
... Appellant(s) / Petitioner(s)
Versus
Bhurumal
... Respondent(s)

Acts Referred:	Industrial Disputes Act, 1947
Sections:	Section 25F ID Act, Section 25G ID Act

JUDICIAL HEADNOTE & SUMMARY

Held that for brief service daily-wagers illegally retrenched under Section 25F, monetary compensation in lieu of reinstatement is the appropriate relief.

RATIO DECIDENDI

The Court held that: Held that for brief service daily-wagers illegally retrenched under Section 25F, monetary compensation in lieu of reinstatement is the appropriate relief. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Bharat Sanchar Nigam Ltd. v. Bhurumal (Civil Appeal No. 1928 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Industrial Disputes Act, 1947, particularly Section 25F ID Act, Section 25G ID Act. Held that for brief service daily-wagers illegally retrenched under Section 25F, monetary compensation in lieu of reinstatement is the appropriate relief.

OPERATIVE ORDER

ORDER: Decided